

C.C.P. § 2030.300(d) mandates sanctions against a party or counsel who unsuccessfully opposes a motion to compel unless substantial justification exists. Sanctions are also authorized under C.C.P. §2023.030 for misuse of the discovery process as defined in C.C.P. § 2023.010. “There is no requirement that misuse of the discovery process must be willful for a monetary sanction to be imposed.” (Cal. Civil Discovery Practice (Cont.Ed.Bar 4th ed. May 2009 update) § 15.94, p. 1440, citing C.C.P., § 2023.030, subd. (a); see 2 Hogan & Weber, Cal. Civil Discovery (2d ed. 2005) Sanctions, § 15.4, p. 15-8 [“Whenever one party's improper actions—even if not ‘willful’—in seeking or resisting discovery necessitate the court's intervention in a dispute, the losing party presumptively should pay a sanction to the prevailing party” (fn. omitted)]; *Kohan v. Cohan* (1991) 229 Cal.App.3d 967, 971.)

While the court does not find substantial justification for Plaintiff Machado’s failure to provide valid objections or code-compliant responses to some of the requests, the court does find that the excessive request for sanctions, the partial code-compliant response and the documented interactions between counsel warrant a reduction of sanctions. The court orders Plaintiff to pay sanctions in the amount of \$995 by January 30, 2026.

Courtroom Clerk's Session

4. 1:30 PM CASE NUMBER: C23-02259
CASE NAME: JOHN RICCABONA VS. SERGIO HERMOSILLO CASTRO
SETTLEMENT CONFERENCE
FILED BY:
TENTATIVE RULING:

Parties are to appear at 1:30 p.m. with clients and/or authorized person to engage in good faith settlement discussions.